

HOUSE No. 1840

The Commonwealth of Massachusetts

PRESENTED BY:

David Paul Linsky

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to enhance safety and security in courthouses.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David Paul Linsky</i>	<i>5th Middlesex</i>	<i>1/15/2025</i>

HOUSE No. 1840

By Representative Linsky of Natick, a petition (accompanied by bill, House, No. 1840) of David Paul Linsky for legislation to further regulate safety and security in courthouses. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1632 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to enhance safety and security in courthouses.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1: Chapter 265 of the General Laws, is hereby amended by inserting after
2 section 13D the following section:

3 Section 13D1/4. Section 13D1/4. Whoever commits an assault or an assault and battery
4 in or on the property owned, leased or occupied by the Massachusetts judicial department or an
5 agency or committee thereof, including any trial or appellate court, during the time when the
6 courts are in session or open to the public may be punished by imprisonment in the state prison
7 for not more than three years or by imprisonment in a jail or house of correction for not more
8 than two and one-half years, or by a fine of not more than \$25,000 or by both such fine and
9 imprisonment.

Section 2: Section 13C of chapter 268 of the General Laws, added by St. 1971, c. 524, is hereby amended by striking out the first sentence and inserting in its place the following:--

Whoever causes or actively participates in the willful disruption of proceedings of any court of the commonwealth may be punished by imprisonment in a jail or house of correction for not more than two and one half years or in state prison for not more than three years, or by a fine of not more than five thousand dollars, or by both such fine and imprisonment. Nothing in this section shall interfere with or prevent the exercise by any court of the commonwealth of its power of contempt.

Section 3: Section 4 of chapter 275 of the General Laws is hereby amended by striking out the first sentence and inserting in its place the following:--

If the person complained of is convicted, he may be punished by a fine of not more than one hundred dollars or by imprisonment for not more than six months, provided that any threat to cause bodily injury to a person on account of the person's performance of official duties as a judge, employee of the judicial department, including but not limited to clerk magistrates, probation officers, interpreters, stenographers, and court officers, prosecutors and attorneys may be punished by imprisonment in a jail or house of correction for not more than two and one half years or in state prison for not more than three years, or by a fine of not more than five thousand dollars, or by both such fine and imprisonment. Nothing in this section shall interfere with or prevent the exercise by any court of the commonwealth of its power of contempt.